

IN THE HIGH COURT OF KERALA AT ERNAKULAM

W.P.(C) No. _____ of 2026

WRIT PETITION (CIVIL)

FILED UNDER ARTICLE 226 OF THE CONSTITUTION OF INDIA

PETITIONER:

Leela Varghese, aged 63, W/o late P. Varghese, Chirackal House, Kakkanad, Ernakulam District

RESPONDENTS:

1. State of Kerala, represented by the Secretary, Local Self Government Department, Thiruvananthapuram
2. Thrikkakara Municipality, represented by its Secretary, Kakkanad

BY ADV. S. Rao

Court fee paid: Rs. 250

Cause of action arose on: 12.01.2026

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SYNOPSIS

The petitioner approaches this Court aggrieved by the matters set out below. The petitioner is a retired school teacher residing at Kakkanad. She applied for a building permit for a single-storey residence on 12.01.2026 in respect of 4.2 cents of land in Sy. No. 118/3.

LIST OF DATES

12.01.2026: cause of action

Filing: date of presentation

WRIT PETITION (CIVIL)

STATEMENT OF FACTS

1. The petitioner is a retired school teacher residing at Kakkanad. She applied for a building permit for a single-storey residence on 12.01.2026 in respect of 4.2 cents of land in Sy. No. 118/3.
2. Despite the application being complete in every respect, the second respondent has neither granted nor refused the permit within the thirty days fixed by Rule 15 of the Kerala Municipality Building Rules, 2019. The petitioner submitted a reminder on 20.03.2026 (Annexure P2), which remains unanswered.

GROUND

- A. The inaction of the second respondent is arbitrary and violates Article 14 of the Constitution.
- B. Under the Rules a permit application not decided in time is deemed granted; the respondents are bound to issue the permit.
- C. The petitioner has no other equally efficacious remedy.

PRAYER

For the reasons stated above, it is respectfully prayed that this Court may:

- i. Issue a writ of mandamus directing the second respondent to issue the building permit applied for on 12.01.2026 within two weeks.
- ii. Grant such other reliefs as this Court deems fit.

Dated this 10th day of October, 2026.

[Signed: Counsel for the petitioner, Adv. S. Rao]

AFFIDAVIT

I, Leela Varghese, aged 63, W/o late P. Varghese, Chirackal House, Kakkanad, Ernakulam District, do hereby solemnly affirm and state as follows:

1. I am the petitioner in the above case and I know the facts of the case.
2. The facts stated in the petition are true to my knowledge, information and belief.
3. The annexures produced are true copies of their originals.

Solemnly affirmed at Ernakulam on 10.10.2026.

[Signed: Leela Varghese, deponent]

Identified by me. Attested before me, Notary Public, Ernakulam.

VAKALATNAMA

I, Leela Varghese, the petitioner in the above case, appoint and retain Adv. S. Rao to appear, plead and act for me in the above case and in all proceedings arising from it.

I agree to ratify all acts done by the advocate in pursuance of this authority.

[Signed: Leela Varghese, client]

Accepted: [Signed: Adv. S. Rao]

ANNEXURE P1

TRUE COPY OF THE BUILDING PERMIT APPLICATION DATED 12.01.2026

This is a true copy of the document produced as Annexure P1. The original document bears the seal and signature of the issuing authority and records the reference numbers, the date of issue and the particulars of the petitioner as set out in the petition.

Certified true copy. [Signed: Adv. S. Rao]

ANNEXURE P2

TRUE COPY OF THE REMINDER DATED 20.03.2026

This is a true copy of the document produced as Annexure P2. The original document bears the seal and signature of the issuing authority and records the reference numbers, the date of issue and the particulars of the petitioner as set out in the petition.

Certified true copy. [Signed: Adv. S. Rao]